



Appeal Decision

Site visit made on 6 August 2026

by David Reed BSc DipTP DMS MRTPI

an Inspector appointed by the Secretary of State for Housing, Communities and Local Government

Decision date: 28 August 2026

Appeal Ref: 6009938

Bulls Head Public House, 96 Cambridge Street, St.Neots PE19 1PJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Jeyaseelan Thambirajah Noble Trading (UK) Ltd against the decision of Huntingdonshire District Council.
 - The application Ref 25/01539/FUL, dated 5 August 2025, was refused on 30 December 2025.
 - The development proposed is the demolition of single-storey structure, change of use from former public house (Sui Generis) to convenience store (Use Class E) with ancillary first-floor accommodation and associated access and car parking area.
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Decision

1. The appeal is allowed and permission is granted for the demolition of single-storey structure, change of use from former public house (Sui Generis) to convenience store (Use Class E) with ancillary first-floor accommodation and associated access and car parking area at Bulls Head Public House, 96 Cambridge Street, St.Neots PE19 1PJ, in accordance with the terms of the application, Ref 25/01539/FUL, dated 5 August 2025, subject to the attached schedule of conditions.

Main Issue

2. The main issue is whether the loss of the public house is justified.

Reasons

3. The former Bulls Head Public House is situated on the southern side of the B1428 Cambridge Street about 500m east of the town centre. The road forms a main route out of the town with the section concerned primarily residential in nature although with some services nearby including an evangelical church, two petrol stations, a barber's shop and a vet.
4. The premises lie within the eastern fringes of the St Neots Conservation Area (CA). There is no dispute that the demolition of the single storey structure and minor external alterations would not adversely affect the character or appearance of the CA but the addition of some signage and internal graphics to the ground floor windows would result in some less than substantial harm. However, since the building would remain in community use as a convenience store the public benefit of the proposal would outweigh this modest amount of harm.
5. The public house, owned by the Greene King brewery chain, operated with a long-term tenant until August 2023 when a further tenant could not be found. The public house closed at that time and a decision was made to sell the premises. Everard Cole, specialist surveyors in the licensed leisure/hospitality sector, were instructed

to sell the property on 31 July 2023 and it was marketed from 15 August 2023 for £350,000 with a series of mailings, inclusion on websites including rightmove and an open viewing day on 6 September 2023. Over a fifteen-month marketing period there were a total of 38 enquiries, 16 viewings and one offer which was withdrawn after a serious water damage incident occurred in December 2023. After this the sale price was reduced to £350,000 and a sale was achieved (to the current appellant) on 1 November 2024.

6. Feedback from the viewings was poor including kitchen too small, no parking, poor condition, disrepair and too much work needed.
7. According to Everard Cole total sales in the last year of operation would have been about £140,000, gross profit £85,550, operating costs about £86,850 and after an allowance for necessary investment the 'fair maintainable operating profit' would have been negative, an annual loss of about £7,700¹. The lack of offers on the basis of continued use as a public house is not therefore surprising.
8. Whilst there are no other public houses in the immediate vicinity there are nine within a 1 km radius as this includes St Neots town centre to the west with its wide variety of premises. These include Ye Old Sun, the Ale Taster, The Hyde Park and The Coach House. This competition was also a likely contributing factor to the lack of interest in a public house use.
9. Policy LM22(e) of the Huntingdonshire Local Plan 2019 (the HLP) allows the loss of a community facility such as a public house if there is no reasonable prospect of it being retained or restored because **either** (i) there is insufficient community support for its continuation **or** (ii) reasonable steps have been taken to effectively market the property for its current use without success². The evidence on (i) is ambiguous but not necessary in any event as a judgement can be made in respect of (ii).
10. The Council argue that the marketing exercise was insufficiently robust as there is no proof that certain websites listed in the marketing report were actually used (an unwarranted allegation), that the premises were only actively marketed for eleven months (a gap whilst an offer proceeds is standard practice) and that the asking price was unrealistic. However, the numerous viewings and clear feedback indicate an effective marketing exercise. The asking price reflected achieved sales figures in the £275,000 - £375,000 range for a series of local comparable public houses. The Council draw attention to a similar appeal in Brampton³ which was dismissed but in that case marketing was brief, intermittent, and the asking price was not disclosed. Such concerns do not arise here. It can be concluded that reasonable steps were taken to market the public house without success.
11. For these reasons the loss of the public house has been sufficiently justified and complies with HLP Policy LM22 and Policy HC6 of the recently published National Planning Policy Framework⁴.

Other Matters

12. Whilst there are other convenience stores along Cambridge Street, in particular a SPAR to the east, LIDL to the west and two small stores associated with the petrol

¹ Marketing and Viability Report dated 8 August 2025

² Policy LM22 with supporting paragraph 6.49 is consistent with and very similar to Policy HC6 of the recently published National Planning Policy Framework.

³ APP/H0520/W/24/3346758

⁴ The main parties were invited to submit comments on the relevance of the latter and these have been taken into account.

stations, there is no planning objection to a further store. Policy LM22 supports the provision of new community facilities within the built-up area and the floorspace of about 158 m² is of a scale which would serve local needs⁵.

13. The existing single storey shelter in the pub garden would be demolished and the garden used for car parking with six spaces (one disabled) and turning facilities accessed from Cambridge Street. Deliveries would be made to the front, like those previously to the public house, with refuse bins stored in and collected from a small compound off Shortsands Yard. The local highway authority are satisfied with these arrangements subject to conditions. Given the modest size of the store and its local role traffic generation and parking demand is likely to be relatively limited and not significantly greater than the previous public house use.
14. The car parking and turning area would be immediately adjacent to two detached houses in Shortsands Yard. Whilst this may generate some noise and disturbance the existing lawful pub garden use must be taken into account and the Council's Environmental Health Officer considers the resulting noise levels, albeit of a different nature, are likely to be broadly comparable⁶. A noise impact assessment of the proposed air conditioning units has been prepared which demonstrates that predicted noise levels would be below measured background levels and thus would have minimal impact on nearby properties, again subject to conditions.

Conclusion

15. The loss of the public house has been sufficiently justified in this instance and the use as a convenience store would represent another, albeit different, community facility. The detailed proposals for the convenience store and its operation are satisfactory subject to a series of conditions.
16. The Council suggested several conditions should the appeal be allowed and these have been assessed against the relevant tests. In addition to the standard implementation time limit it is necessary to define the approved plans in the interests of certainty. Further conditions are necessary to ensure the car parking/turning area is provided and to control details of the car park access, visibility splays and drainage in the interests of highway safety. It is also necessary to limit the opening hours of the store and the operation of air conditioning units to protect the amenity of nearby residents. Following consultation with the main parties, a further condition is necessary to limit occupation of the first-floor accommodation to a person working for the business on the ground floor as the living conditions offered would not be suitable for an independent unit of accommodation.
17. The Council suggested a condition requiring further details of the materials to be used in the external surfaces of the development including a 1m² brickwork sample to be erected on site but this is unnecessary as the proposal is primarily a change of use of the existing building.
18. Having regard to the above the appeal should be allowed.

David Reed

INSPECTOR

⁵ Council figure, the appellant states the trading floorspace would be 90 m²

⁶ Photos in the Design and Access Statement show timber outside seating and a smoking shelter in the pub garden area.

Schedule of Conditions

1. The development hereby permitted shall be begun before the expiration of three years from the date of this permission.
2. The development hereby permitted shall be carried out strictly in accordance with the following approved plans and documents:
Drawing no. 24/1723 25 10 10 01 1/9 Site Location & Existing Block Plan
Drawing no. 24/1723 25 10 10 01 2/9 Proposed Block Plan
Drawing no. 24/1723 25 10 10 01 3/9 Location Plan
Drawing no. 24/1723 25 10 10 01 4/9 Existing Ground Floor
Drawing no. 24/1723 25 10 10 01 5/9 Proposed Ground Floor
Drawing no. 24/1723 25 10 10 01 6/9 Existing First Floor
Drawing no. 24/1723 25 10 10 01 7/9 Proposed First Floor
Drawing no. 24/1723 25 10 10 01 8/9 Existing Elevations
Drawing no. 24/1723 25 10 10 01 9/9 Proposed Elevations
Design and Access Statement dated 07/08/2025
Noise Impact Assessment Nova Acoustics NP-012654 dated 23/05/2025
Delivery Assessment Booker Retail Partners dated 10/01/2025
3. The access shall be a minimum width of 5m for a minimum distance of 10m measured from the near edge of the highway carriageway.
4. Prior to the first occupation of the development the proposed on-site parking and turning area shall be laid out, demarcated, levelled, surfaced and drained in accordance with the approved plan and thereafter retained for that specific use.
5. Prior to the commencement of the use hereby permitted visibility splays of 1.5m x 1.5m shall be provided each side of the vehicular access measured from and along the back of the footway. Such splays shall thereafter be maintained free from obstruction exceeding 0.6m above the level of the footway.
6. The access shall be constructed with adequate drainage measures to prevent surface water run-off onto the adjacent public highway in accordance with a scheme submitted to and approved in writing by the Local Planning Authority.
7. The premises shall be open to customers only between 06:30 and 23:00 Monday to Saturday and 08:00 to 21:00 on Sundays, Bank Holidays and Public Holidays.

Outside the hours specified, the operation of air conditioning units shall be limited to one unit (JEHS-0200-B2-M-1) and shall be operated in accordance with Chapter 4 of the approved Noise Impact Assessment by Nova Acoustics dated 23 May 2025 and received by the LPA on 14/08/2025.
8. The residential accommodation on the first floor shall only be occupied by the owner, co-owner or an employee of the commercial business on the ground floor and the dependents of such a person.